Blue Slip

HJD/C-41

(Revised: under Act No. II of 1990)

20

ORDER OF THE COURT.

In the Court/Tribunal:

Case No. WP-8568-13 Title Muhammad Yousaf vs. State.

Decided on: 12-03-014

(a) Judgment approved for reporting — Yes/No ✓

(b) Registrar should see with reference to the work or conduct of some judicial officer. — Yes/No

(c) If so, a separate confidential note should be sent to him question. — Yes/No

CERTIFICATE.

Certified that the judgment/order is based upon or enunciates a principle of law/decides a question of law which is of first impression/distinguishes/over-rules/reverses/explains a previous decision.

Judge(s)/Presiding Officer

Strike out whichever is not applicable.

Note:-

(1) This slip is only to be used when some action is to be taken

(2) If the slip is used, the Reader must attach it to the top of the first page of the judgment.

(3) Reader must ask the Judge writing the Judgment whether the Judgment is approved for reporting.

(4) Those directions which are not to be used should be deleted.

To be used by I.T.

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Dated: _____

Action Taken on Blue Slip

EXAMINER COPY

CJDA 38

JUDGMENT SHEET
IN THE LAHORE HIGH COURT, MULTAN BENCH, MULTAN
JUDICIAL DEPARTMENT

1. *Writ Petition No. 8568 of 2013*

(Muhammad Yousaf vs. State and another)

2. *Writ Petition No. 9029 of 2013*

Altaf Hussain vs. Special Judge Anti-Terrorism Court and four others

3. *Writ Petition No. 1614 of 2014*

Muhammad Afzal vs. Special Judge, Anti-Terrorism Court and five others.

4. *Writ Petition No. 2158 of 2014*

Zia Ahmed vs. Judge Anti-Terrorism Court and two others.

JUDGMENT.

Date of hearing: 12.03.2014

Petitioner by: Ch. Sagheer Ahmad and Mr. M.A. Hayat Haraj, Advocates for the petitioner in Writ Petition No. 8568 of 2013.

Respondent No. 2 by: Syed Badar Raza Gillani, Advocate.

State by: Malik Muhammad Bashir Lakhesir, A.A.G. and Mr. Muhammad Ali Shahab, D.P.G.

Muhammad Tariq Abbasi, J: This single judgment is intended to decide all the above captioned writ petitions as common questions of law and facts are involved in the all.

2. The above titled writ petitions have been preferred against the orders passed, by the learned Anti Terrorism Courts (trial Courts) whereby applications moved by the petitioners in the writ petitions, for transfer of the cases to ordinary courts have been refused.

3. The precise facts of the cases, relating to the above captioned writ petitions are as under:-

1. ***Writ Petition No. 8568 of 2014***

   In this matter by firing in Court premises a person, namely, Muhammad Qasim has been murdered.

2. ***Writ Petition No. 9029 of 2013***

   In the instant matter while throwing acid two ladies, namely, Azizan Mai and Sania have been done to death, whereas, another, namely, Sonia sustained injuries.

3. ***Writ Petition No. 1614 of 2014***

   Regarding this matter, by throwing acid on Muhammad Ramzan he has been done to death.

4. ***Writ Petition No. 2158 of 2014***

   In the instant matter by firing in the mosque injury to Muneer Ahmed has been caused.

4. From the writ petitioners' side, it has been argued that all the above mentioned occurrences were result of personal grudge and vendetta, having no nexus with Section 6 or 7 of Anti-Terrorism Act, 1997, hence, triable by the ordinary Courts but erroneously the applications moved under Section 23 of the Anti-Terrorism Act, 1997 have been dismissed.

5. Whereas from the respondents' side the writ petitions have been opposed with the contention that the offences

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charged being Scheduled, are very much triable by the Special Courts constituted under the Anti Terrorism Act, 1997 and as such the impugned orders have justifiably been passed.

6. Arguments of all the sides have been heard and the record has been perused.

7. For convenience, herein after the Anti Terrorism Act, 1997 will be referred as "The Act", the Anti Terrorism Court as "The Court" and the Third Schedule as "The Schedule".

8. The only issue before us is, whether all the offences described in The Schedule, attached to The Act would only be triable by The Court, if they will have nexus with Section 6 of the Act or some specified offences are straightaway triable by The Court.

9. For better appreciation of the above mentioned question, it would be appropriate to refer some of the provisions of The Act, herein below:-

The preamble of The Act reads as under:-

> *"An act to provide for the prevention of terrorism, sectarian violence and for speedy trial of heinous offences.*
>
> *Whereas it is expedient to provide for the prevention of terrorism, sectarian violence and for speedy trial of heinous offences and for matters connected therewith and incidental thereto."*

10. From the above mentioned provision it is clear that very purpose of The Act is to prevent terrorism, sectarian violence and speedy trial of the heinous offences and the matters relating thereto. To constitute an offence triable under the Act, the courts have only to see whether act has a tendency to create sense of fear and insecurity in the mind of people or a section of society.

Psychological impact created upon the minds of the people has to be kept in view. It is not necessary that act must have taken place within the view of general public. Even an offence committed in a barbaric and gruesome manner, if had created fear and insecurity, would come within the ambit of The Act. In this regard reliance can be placed in case "State through Advocate General N.W.F.P Peshawar vs Muhammad Shafiq" (PLJ 2003 SC 506).

11. Under Section 1 of The Act, for the province of Punjab, the following amendment has been made:-

> *"For the purposes of the provision and punishment of the commission of terrorist acts and scheduled offences to have resort to the provisions of the said Act for the whole of the province of Punjab."*

12. "Schedule" and "Scheduled offence" have been defined in Section 2 (s) & (t) as under:-

> *"Schedule" means a Schedule to This Act."*
> *"Scheduled offence" means an offence as set-out in the Third schedule."*

13. As per Section 12 of The Act, a Scheduled offence shall only be triable by The Court.

14. According to Section 34 of The Act, the government may, by notification, amend the First, Third and Fifth Schedule, so as to add any entry thereto or modify or omit any entry therein.

The Third schedule of the Act speaks as under:-

THE THIRD SCHEDULE

(Scheduled Offences)

[Sec Section 2(t)]

1. *Any act of terrorism within the meaning of this Act including those offences which may be*

added or amended in accordance with the provisions of Section 34 of this Act.

2. *Any other offence punishable under this Act.*

3. *Any attempt to commit, or any aid or abetment of, or any conspiracy to commit, any of the aforesaid offences.*

[4. Without prejudice to the generality of the above paragraph, the Anti-terrorism Court to the exclusion of any other Court shall try the offences relating to the following, namely:-

(i) Abduction or kidnapping for ransom;

(ii) use of fire-arms or explosives by any device, including bomb blast in a mosque imambargah, church, temple or any other place of worship, whether or not any hut or damage is caused thereby; or

(iii) firing or use of explosives by any device, including bomb blast in the Court premises.]

Punjab Amendment

[(iv) Hurt caused by corrosive substance or attempt to cause hurt by means of a corrosive substance; and

(v) Unlawful possession of an explosive substance or abetment for such an offence under the explosive substances Act, 1908 (VI of 1908).

15. A schedule appended with a statute is as much important as the statute is. A schedule can be used in construing provisions in body of the Act. It for all purposes of constructions must be read together with the Act. The liability imposed in schedule is equally binding for all the concerned. Therefore, the Third Schedule of the Anti-Terrorism Act should be given due importance and should be strictly acted upon.

16. It has been observed that first three paragraphs of The Schedule are general in nature, whereas paragraph No. 4 is specific regarding certain offences described therein. Initially above

mentioned three paragraphs, which were general in nature, were inserted in The Schedule. In the said paragraphs no specific offence was mentioned, hence, for brining an offence within the ambit of The Act and jurisdiction of The Court, nexus of said offence, with Section 6 of the Act was the pre-requisite.

17. When with the passage of time, commission of certain heinous offences was increased, the legislature had thought that by a Special amendment such heinous offence be included in The Schedule, so that they may be straightaway brought before The Court. The very language of paragraph No. 4 above, shows that it is specific, whereas, the above mentioned other paragraphs (1,2 & 3) are general in nature. In the said paragraph No. 4, it is categorically mentioned the offences narrated thereunder shall only be tried by The Court. The abovementioned wisdom of the legislature should be given due weight and importance and as such the above said particular offences included under para-4 of the Schedule, while keeping in view the special circumstances, should not be ignored and should be dealt with as per intention of the parliament.

18. Therefore, we are of the view that regarding the offences, mentioned under paragraph 4 above, The Court shall have direct jurisdiction and relating to the said offences no nexus should be searched because very commission of the said offences create terror, panic and sense of insecurity amongst the general public.

19. Our above mentioned view has been fortified by the dictum laid down by the august Supreme Court of Pakistan in case titled **Rana Abdul Ghaffar vs. Abdul Shakoor and three others** ***(PLD 2006 Lahore 64),*** whereby regarding an offence of

bduction or kidnapping for ransom described in paragraph No. 4 of the schedule, the following has been held:-

> *"After introduction of the Anti-Terrorism (Second Amendment) Act, 2004, the case had to be transferred to Anti Terrorism Court because now only such a Court as constituted under the Anti Terrorism Act, 1997 had the exclusive jurisdiction to try the same and sentence, if any, to be passed against any accused person found guilty in the case by the Judge, Anti Terrorism Court, could not be greater than, or of a kind different from the sentence prescribed by the relevant law for the relevant offence at the time the said offence was committed.... According to subsection (1) of section 12 of the Anti-Terrorism Act, 1997 an offence mentioned in the Third Schedule appended with the Anti-Terrorism Act, 1997 can be tried only by an Anti-Terrorism Court constituted under the said Act and no other Court has any jurisdiction in that regard. The Third Schedule appended with the Anti-Terrorism Act, 1997 not only mentions the offence of 'terrorism' but also mentions other offences which now, through the above mentioned amendment introduced on 11.1.2005 includes an offence of abduction or kidnapping for ransom."*

20, It has been observed that a learned Division Bench of this Court in case titled "*SAIF ULLAH SALEEM and others vs. The STATE and others*" *(2013 P.Cr. LJ 1880)* has transferred a case of acid bearing registered through F.I.R. No. 725 of 2012, under Sections 324/336-B/337-F(i) P.P.C. and 7 of Anti Terrorism Act, 1997 at Police Station Chahlyak, District Multan, from Anti Terrorism Court to the Court of ordinary jurisdiction. When the said matter in shape of Civil Petition No. 700 of 2013 titled "Malik Zafar Hussain vs. Saif Ullah Saleem Arshad and others" came before the august Supreme Court of Pakistan, the following observations, were made.

> *"We have heard the learned counsel for the petitioner and have also gone through the impugned judgment,*

particularly para 7 thereof reproduced herein above. The learned High Court after having taken into consideration the peculiar facts and circumstances of the case, rightly, came to the conclusion that Section 7 of the Act does not attract in this case as the offence did not create panic or sense of insecurity among the people in terms of the provisions of the Act.

In view of the foregoing discussion, we find no merit in this petition which is dismissed and leave to appeal is declined. However, we leave it open for examination the jurisdiction of Anti Terrorism Court in respect of the offence of causing hurt by corrosive substance or attempt to cause hurt by means of a corrosive substance, as inserted in the Third Schedule vide notification noted hereinabove."

21. From the above mentioned verdict of the august Supreme Court of Pakistan, it is clear that above said judgment passed by the learned Division Bench of this Court was confined to the facts and circumstances of the case in question and point of jurisdiction in respect of the offences of causing hurt by corrosive substance or attempt to cause hurt by means of corrosive substance as inserted in Third Schedule was kept open for Anti Terrorism Court.

22. During arguments, the learned counsel for the petitioners have cited the cases reported as "Mehram Ali and others vs. Federation of Pakistan and others" (PLD 1998 SC 1445), "Ch. Bashir Ahmad vs Naveed Iqbal and 7 others" (PLD 2001 SC 521), "Mohabbat Ali and another vs The State and another" (2007 SCMR 142), "Bashir Ahmad vs Muhammad Sadique and others" (PLD 2009 SC 11) and "Ahmed Jan vs. Nasrullah and others" (2012 SCMR 59). It has been observed that the said judgments either pertain to the period prior to the abovementioned amendments made in the Third Schedule of The Act or the facts and circumstances of the cases are not the same as are in the matters in hand.

23. As a result of what has been discussed above, we are of the view that all the above mentioned offences relating to the above said writ petitions, being falling under above referred paragraph No. 4 of Third Schedule of The Act are straightaway triable by the Anti Terrorism Courts concerned. Hence, the applications moved under Section 23 of the Act for transferring the matters to ordinary Courts, have rightly been dismissed.

24. Consequently, all the above captioned writ petitions are dismissed.

(Muhammad Qasim Khan)
Judge

(Muhammad Tariq Abbasi)
Judge

APPROVED FOR REPORTING

Announced in open Court on 10.04-14.

JUDGE

JUDGE

*Jamshaid**